

THE CONSTITUTION (FIFTY-FIRST AMENDMENT) ACT, 1984

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Constitution and Amendments

THE CONSTITUTION (FIFTY-FIRST AMENDMENT) ACT, 1984

India

THE CONSTITUTION (FIFTY-FIRST AMENDMENT) ACT, 1984

Act 051 of 1984

Published in Gazette of India on 22 August 1984

Commenced on 29 April 1985

[This is the version of this document from 22 August 1984.]

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Statement of Objects and Reasons appended to the Constitution (Fifty-third Amendment) Bill, 1984 (Bill No. 81 of 1984) which was enacted as THE CONSTITUTION (Fifty-first Amendment) Act, 1984

STATEMENT OF OBJECTS AND REASONS

The Meghalaya Legislative Assembly passed a resolution on 31st March, 1980 urging the Government of India to provide for reservation of seats for Scheduled Tribes in the State Legislative Assembly and also in the House of the People on the pattern obtaining in other States in the country. The State Government, therefore, recommended amendment of articles 330 and 332 of the Constitution. The Governments of Nagaland, Arunachal Pradesh and Mizoram have also supported the amendment in respect of their respective areas. It is, therefore, proposed to amend article 330 of the Constitution to provide for reservation of seats in the Lok Sabha for Scheduled Tribes in Meghalaya, Nagaland, Arunachal Pradesh and Mizoram and article 332 to provide for similar reservation in the Legislative Assemblies of Nagaland and Meghalaya. The amendments have been proposed to meet the aspirations of the local tribal population.

2.

This Bill seeks to achieve the above object.

An Act further to amend the Constitution of India.

BE it enacted by Parliament in the Thirty-fifth Year of the Republic of India as follows:-

1.

Short title and commencement.-

(1)

This Act may be called the Constitution (Fifty-first Amendment) Act, 1984.

(2)

It shall come into force on such date_670 as the Central Government may, by notification in the Official Gazette, appoint.

2. Amendment of article 330.-

(1)

In article 330 of the Constitution, in clause (1), for sub-clause (b), the following sub-clause shall be substituted, namely:-

"(b) the Scheduled Tribes except the Scheduled Tribes in the autonomous districts of Assam; and".

(2)

The amendment made to article 330 of the Constitution by sub-section (1) shall not affect any representation in the House of the People until the dissolution of the House of the People existing at the commencement of this Act.

3.

Amendment of article 332.-

(1)

In article 332 of the Constitution, in clause (1), for the words "except the Scheduled Tribes in the tribal areas of Assam, in Nagaland and in Meghalaya", the words "except the Scheduled Tribes in the autonomous districts of Assam" shall be substituted.

(2)

The amendment made to article 332 of the Constitution by sub-section (1) shall not affect any representation in the Legislative Assembly of the State of Nagaland or the Legislative Assembly of the State of Meghalaya until the dissolution of the Legislative Assembly of the State of Nagaland or the Legislative Assembly of the State of Meghalaya existing at the commencement of this Act.

[The Constitution (Fifty-First Amendment) Act, 1984, it w?s en??ted t? ?r?vide f?r reserv?ti?n ?f seats in the house of the ????le for scheduled tribes in n?g?l?nd, megh?l?y?, miz?r?m ?nd ?run??h?l ?r?desh ?nd ?ls? f?r reserv?ti?n ?f se?ts f?r s?heduled tribes in the legislative assemblies of n?g?l?nd and megh?l?y? by suitably amending articles 330 ?nd 332. The number ?f se?ts reserved f?r s?heduled ??stes and scheduled tribes in the legislative assembly ?f ?ny st?te under ?rti?le 332 ?f the ??nstituti?n will h?v? to be determined having reg?rd t? the provisions of article 332 (3) ?f the ??nstituti?n.

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